

**Judge Mosbarger – Law & Motion – Wednesday, June 24, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 24CV00765 HATZIS, MORGAN RAE V. PRIETO, MARIA NERISSA ET AL

EVENT: Plaintiff's Amended Motion for Monetary Sanctions

As an initial matter, Plaintiff/Cross-Defendant Morgan Rae Hatzis ("Plaintiff" herein), has requested an "Order requiring Defendants and their counsel of record to serve all future filings, papers, discovery, and case correspondence in this action exclusively through Butte County Superior Court's approved electronic filing service provider as required by Butte County Local Rule 21, and not by personal email transmission or first-class mail." However, Butte County Local Rule 21 addresses mandatory electronic filing, not mandatory electronic service. This request for relief is therefore unsupported and is denied.

The Court finds that Defendants/Cross-Complainants Maria Nerissa Prieto and Privilege Medical, Inc. ("Defendants" herein) did not misuse the discovery process and acted with substantial justification and in good faith. As such, the Motion is denied in its entirety.

The Court notes that should there be difficulty in scheduling future depositions in this case, the Court is not ordering the parties to participate but makes available the pre-trial discovery conference procedure as set forth in Butte County Local Rule 2.14.C. should any party wish to voluntarily avail themselves of the procedure.

2. 24CV01006 PARRIS, LORI V. ISAKSON, BENJAMIN, MD ET AL

EVENT: Defendant Brian Courtney, M.D.'s Motion for Summary Judgment

The Motion for Summary Judgment being unopposed, and Defendant having made a prima facie showing that there is no liability with respect to Defendant Brian Courtney, M.D., the Motion for Summary Judgment is granted. Defendant shall submit a form of order within two weeks.

3-4. 24CV01277 13290 CONTRACTORS LANE, LLC V. WISHBONE RANCH, LLC ET AL

EVENTS: (1) Defendant Brian Howe's Demurrer to Third Amended Complaint

(2) Defendant Brian Howe's Motion to Strike Third Amended Complaint

In regard to Defendant Brian Howe's Demurrer to Third Amended Complaint ("TAC" herein), the Court finds that the Plaintiff has sufficiently stated a cause of action for breach of contract [see TAC at ¶¶2, 14, 16, 18-19, 21, 23-27], and the First Cause of Action for Breach of Contract is not time barred. See, *Gilkyson v. Disney Enterprises, Inc.* (2016) 244 Cal.App.4th 1336, 1341-1342 [finding that under the continuous accrual doctrine each breach of a recurring obligation is independently actionable and that the doctrine represents an equitable response to the inequities that would arise if the expiration of the limitations period following a first breach of duty or instance of

misconduct were treated as sufficient to bar suit for any subsequent breach or misconduct]. The Demurrer is overruled on this basis.

In regard to the economic loss rule, the Court finds that the allegations of property damage against Defendant are sufficiently alleged as injury to "other property." While Defendant argues that if the property damage is of the contractual item itself the remedy lies solely in contract, barring the tort claim, here the Court finds that the lease agreement includes the ability to occupy the premises, and is not a contract for the property itself. The property damages alleged therefore sound in tort and the Demurrer is overruled on this basis. The Court finds that Plaintiff has sufficiently stated a cause of action for property damage as to the Defendant [see TAC at ¶¶43-51], and the Demurrer to the Fifth Cause of Action for Property Damage is overruled.

Defendant Brian Howe's Demurrer to Third Amended Complaint is overruled in its entirety. Likewise, in regard to Defendant Brian Howe's Motion to Strike Third Amended Complaint, for the same reasons discussed above, the Motion is denied in its entirety. Defendant Brian Howe is to file and serve his Answer to the Third Amended Complaint within 20 days' of this hearing, but no later than July 14, 2026. Counsel for the Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.

5. 24CV02467 DOE, JANE V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Motion for Summary Judgment/Summary Adjudication by Defendant Chico Unified School District

Defendant Chico Unified School District's ("the District" herein) Request for Judicial Notice is granted.

Education Code §35330 provides that all persons making a school-sponsored field trip or excursion are "deemed to have waived all claims against the district... for injury, accident, illness, or death occurring during or by reason of the field trip or excursion." Here, the Court finds that there is a triable issue of material fact as to whether the outdoor science program in Yosemite was a "field trip" or "excursion" for purposes of determining whether the District has immunity under *Education Code* §35330. [See Additional Undisputed Material Facts ("AMF" herein) Nos. 14-28]. Furthermore, while not controlling, the Court is persuaded by the concurring opinion presented in *Doe v. Mount Pleasant Elementary School Dist.* (2025) 113 Cal.App.5th 1208, wherein there was an acknowledgment that providing absolute immunity to school districts under *Education Code* §35330, for all injuries suffered by students on field trips - specifically including sexual abuse - runs directly "counter to the compelling state interest of protecting children from sexual abuse." *Id.* at 1233. Therefore, even if the Court were to find that the outdoor science program was a field trip or excursion, the Court finds that the District failed to meet its initial burden of showing no triable issue of material fact exists as to whether the immunity set forth in *Education Code* §35330 would apply to the District's alleged negligent acts. The Motion is therefore denied in this regard.